

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

DOLLAR GENERAL LOGISTICS, LLC, *Complainant*

v.

YANG MING MARINE TRANSPORT CORP., *Respondent*.

DOCKET NO. 25-12

Served: January 21, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

SECOND AMENDED SCHEDULING ORDER

On July 1, 2025, the Commission issued a Notice of Filing of Complaint and Assignment (“Notice”) for this proceeding. On July 25, 2025, Respondent Yang Ming Marine Transport Corp. (“Yang Ming”) filed an answer. On August 8, 2025, Dollar General Logistics, LLC (“Dollar General”) and Yang Ming filed a Joint Status Report (“JSR”) and proposed a schedule which would complete discovery on June 26, 2026. On August 12, 2025, I issued a scheduling order that extended the schedule two months beyond the 150-days set in Rule 141, but less than the six months sought by the parties at the outset. At the time, I cautioned the parties that “[m]otions to further enlarge the discovery period are unlikely to be granted absent a detailed statement of good cause.” Scheduling Order at 1.

On November 13, 2025,¹ the parties jointly moved to extend the schedule, requesting to extend all deadlines by an additional three months. A Joint Status Report (“JSR 2”)² submitted on December 12, 2025, stated that Yang Ming had collected 300,000 documents, but did not indicate that it had produced any of them to Dollar General. JSR 2 at 3.

On December 17, 2025, I issued an Amended Scheduling Order issued that extended the substantial completion of document production from October 31, 2025, to January 9, 2026.

On January 16, 2026, the Parties filed the third Joint Status Report (“JSR 3”), as required by the Amended Scheduling Order, along with a second Joint Motion to Extend Discovery (“2nd Jt. Motion to Extend”). In the third joint status report the parties state that of the 300,000

¹ The parties submitted the Joint Motion to Extend Deadlines on October 24, 2025, during the government shutdown due to a lapse in appropriations. Accordingly, the date of filing is November 13, 2025, the day the government reopened.

² As stated in the Initial Order, the parties should be numbering filings that contain the same title, for example: Second Joint Status Report, Third Joint Status Report, etc., and Second Joint Motion to Extend, Third Joint Motion to Extend, etc. Initial Order at 4.

documents Yang Ming had collected as of December 12, 2025, it had provided 29,541 documents to Dollar General as of January 9, 2026, and 47,077 more as of January 16, 2026, the date of JSR 3. JSR 3 at 2. However, in the 2nd Jt. Motion to Amend, the parties state that Yang Ming produced 29,541 documents as of January 9, 2026, “with further productions of approximately 80,000 documents in an additional four production volumes...January 15, 2026.” 2nd Jt. Motion to Extend at 3. To further confuse the matter, in the next sentence the 2nd Joint Motion to Extend states that the total data produced by Yang Ming “at the time of this filing is about 135 GB or 76,618 documents.” 2nd Jt. Motion to Extend. Meanwhile, Dollar General has completed its rolling production of documents and ESI, starting with a limited production on October 30, 2025, and completing it on January 9, 2026, totaling 29,427 documents. *Id.* at 1-2.

While neither party fully complied with the initial Scheduling Order, Dollar General started production in October 2025 and completed it by the Amended Scheduling Order deadline on January 9, 2026. Based on the joint status reports and the current motion, Yang Ming produced 29,541 documents prior to January 9, 2026, the date by which production was to be substantially completed under the Amended Scheduling Order, and as of January 16, 2026, it produced another 47,077, which it represents is 14% of what “it is likely to produce...” JSR 3 at 3; 2nd Jt. Motion to Extend at 2. Now, a week after the production deadline,³ the parties seek enlargement of the amended schedule so Yang Ming can complete substantial production of documents “**on a rolling production basis within the next 10 days.**” JSR 3 at 3 (emphasis added). Despite stating that Yang Ming will substantially complete production of documents and ESI by January 26, 2026, the parties move to enlarge the substantial completion of document production by 120 days, and “thereafter adding 50% of the intervals for subsequent deadlines included in the Amended Scheduling Order; and proposing a merits briefing schedule of 32/33/22 days for the Parties’ respective briefs....” 2nd Jt. Motion to Extend at 8.

As good cause to extend the schedule by four months, the parties state this additional time is necessary because of the volume of documents Yang Ming collected (which is complete according to the 2nd Jt. Motion to Extend at 3), that must still be reviewed for privilege and confidentiality, and then produced (which they assert will be done within 10 days of the filing of the motion), reviewed, and synthesized into useable evidence for depositions. 2nd Jt. Motion to Extend at 3. Also cited as good cause to further amend the schedule is the large number of depositions the parties expect to conduct. In the third joint status report, the parties indicate that they have conferred and currently expect to conduct 19 depositions: 10 Yang Ming fact witnesses and 9 Dollar General fact witnesses. JSR 3 at 4. They further state that they currently expect Dollar General to submit one initial expert report and Yang Ming will submit two rebuttal reports.

In support of their motion, the parties cite amended scheduling orders in other cases that they similarly relied on in their last motion to extend the schedule; those cases were discussed and distinguished in the Amended Scheduling Order, so it is not necessary to reiterate why those cases are not applicable here. *Also see* 46 C.F.R. § 502.25(b)(4).

³ A motion to enlarge the schedule should be filed prior to the next deadline in the schedule or be accompanied by an explanation as to why it was not. See 46 C.F.R. § 502.102 for general guidance.

The extension of the schedule as proposed by the parties is not reasonable and will substantially delay this proceeding, particularly in light of the representation in both the JSR 3 and 2nd Jt. Motion to Extend that Yang Ming can complete substantial production of documents on a rolling basis “within the next 10 days.” JSR at 3; 2nd Jt. Motion to Extend at 3. Accordingly, the 120-day extension is denied, and the schedule is amended as detailed below, with time added to complete the production and to prepare for depositions, as well as the standard briefing schedule. Motions to further enlarge the discovery period are highly unlikely to be granted, and rather than seek to do so, the parties should work to narrow the issues, confer on stipulations of fact, and consider ways to work within the existing deadlines.

Accordingly, the parties are **ORDERED** to follow the following schedule:

January 30, 2026	Substantial completion of document (including ESI) production
March 2, 2026	Begin depositions of fact witnesses
April 17, 2026	Complete depositions of fact witnesses
April 17, 2026	Last day to serve interrogatories, requests for admission, requests for production of documents
April 24, 2026	Disclosure of initial expert reports
May 8, 2026	Disclosure of rebuttal expert reports
May 22, 2026	Complete expert depositions
May 22, 2026	Complete discovery
June 22, 2026	Complainant’s Initial Brief, proposed findings of fact, appendix
July 20, 2026	Respondent’s Opposition Brief, responses to proposed findings of fact, proposed findings of fact, appendix
August 3, 2026	Complainant’s Reply Brief and responses to Respondent’s proposed findings of fact



Linda S. Harris Crovella
Administrative Law Judge